MINUTES

OF THE

91ST COUNCIL MEETING

MINUTES OF THE 91ST MEETING OF THE NATIONAL JUDICIAL COUNCIL (VIRTUAL) HELD ON WEDNESDAY 22ND APRIL, 2020

1.0 ATTENDEES

1. Hon. Dr. Justice I. T. Muhammad, CFR - Chairman
2. Hon. Justice Bode Rhodes-Vivour, CFR - Deputy Chairman
3. Hon. Justice M. B. Dongban-Mensem - Member
4. Hon. Justice E. O. Ayoola, CON - "
5. Hon. Justice F. F. Tabai, CON - "
6. Hon. Justice Umaru Abdullahi, CON - "
7. Hon. Justice J. T. Tsoho - "
8. Hon. Justice I. U. Bello - "
9. Hon. Justice B. B. Kanyip - "
10. Hon. Justice O. A. K. Ogwe - "
11. Hon. Justice A. I. Iyayi-Lamikanra - "
12. Hon. Justice Rabi T. Umar - "
13. Hon. Justice Oyebola A. Ojo - "
14. Hon. Grand Kadi Mohammed Danjuma - "
15. Hon. Justice A. M. A. Saddeeq - "
16. Mr. Paul Usoro, SAN - "

17.	Mr. A. B. Mahmoud, OON, SAN	-	Member
18.	Dr. M. A. Banire, SAN	-	,,
19.	Mr. D. D. Dodo, OFR, SAN	-	,,
20.	Efosa O. Etomi, Esq.	-	,,
21.	Mrs R. S. Ibrahim, MON	-	,,
22.	Mrs R. I. Inga	-	"
23.	Ahmed Gambo Saleh, Esq.	-	Secretary

2.0 IN ATTENDANCE

1. Soji Oye, Esq.
   Director (Information), NJC
2. Hadiza S. Sa'eed, Esq.
   Deputy Director (Performance Evaluation\Legal), NJC
3. Florence Bintur-Shik (Mrs)
   Deputy Director (Admin.) Secretariat, NJC
4. Ahmed S. Olorukooba (Mr.)
   Asst. Director (Admin.) Secretariat, NJC
5. Ramatu Hassan-Ahmed, Esq.
   Asst. Director (Performance Evaluation/Legal), NJC
   & Senior Special Assistant to the CJN
6. Zarah M. Babangida, Esq.
   Asst. Chief Legal Officer\SA to the Secretary, NJC

3.0 COMMENCEMENT

3.1 The Meeting commenced at 11.25 am with the National Anthem. Thereafter, the Chairman welcomed Members who introduced themselves, after which Hon. Justice Rabi T. Umar led the opening prayer.

4.0 MINUTES OF THE 90TH MEETING

4.1 Council read the Minutes of the 90th Meeting held on Tuesday, 17th December, 2019 and made the following corrections:-

i) Page 22, Paragraph 7.5.4, Line 1, the name "Dr. D.D. Dodo, OFR" was amended to read "Mr. D.D. Dodo, OFR, SAN" and anywhere else it appeared.

ii) Page 42, Paragraph 7.17.6, line 1, the words "of Ogun State" were inserted after the word "Judge".

iii) Page 43, Paragraph 17.18.2, line 2, the word "List" was inserted after the word "Preferred" and the word "Lists" after the word "Reserve" was corrected to read "List".

iv) Page 52, paragraph 11.4, line 2, the words "through respective their" were corrected to read "through their respective".

4.2 **Adoption of the Minutes of the 90th Meeting:**

4.2.1 In the absence of any further amendments, Hon. Justice B.B. Kanyip moved for the adoption of the Minutes and was seconded by Hon. Justice Bode Rhodes-Vivour, CFR.

5.0 MATTERS ARISING FROM THE MINUTES OF THE 90TH MEETING

5.1 **Crisis between the Judiciary Staff Union of Nigeria (JUSUN), Nasarawa State Chapter and the Chief Judge of the State:**

5.1.1 The Secretary reported that action had been taken by the Secretariat by writing to inquire from JUSUN whether they were aware of the pending Suit before the National Industrial Court on the matter. He stated further that JUSUN had replied the letter stating that the pending suit was not filed by the Nasarawa State Chapter but by its National Body.

5.1.2 The Chairman was of the view that the matter should be put on hold until the Court determined the Suit.

5.1.3 Members agreed with the above suggestion.

5.2 **Four Justices, Supreme Court of Nigeria:**

5.2.1 Council was informed by the Secretary that His Excellency, President Muhammadu Buhari, GCFR had not responded to

the Council's recommendation for the appointment of four Justices to the Supreme Court of Nigeria.

5.2.2 A Member observed that the recommendation was forwarded to Mr. President since last year and therefore, suggested a follow up with the Presidency.

5.2.3 Another Member suggested that a reminder should be sent to the President on the matter.

5.2.4 A Member agreed with the previous Speaker and suggested that NBA Members should also follow up with the Presidency on the matter.

5.2.5 Council agreed that a reminder should be sent to Mr. President and mandated the Chairman to act accordingly.

5.3 **Letter of Protest on the Seniority List of High Court Judges of Enugu State:**

5.3.1 The Secretary reported that action had been taken by the Chairman as mandated by the Council.

5.3.2 Members took note.

5.4 **Chief Judge, Anambra State:**

5.4.1 The Secretary confirmed that action had been taken by the Chairman as mandated by the Council.

5.4.2 Members took note.

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5.5 **Chief Judge, Kebbi State:**

6.5.1 The Secretary informed Council that the Chairman had taken action as mandated.

5.5.2 Members took note.

5.6 **Chief Judge, Cross River State:**

5.6.1 The Secretary reported that action had been taken by the Chairman as mandated by the Council. He further stated that the Cross River State House of Assembly decline the confirmation of appointment of Hon. Justice Akon Bassey Ikpeme as recommended by the Council. Instead, Hon. Justice Maurice Ode Eneji was sworn in by the State Governor as Acting Chief Judge.

5.6.2 A Member recalled that the Cross River State JSC had nominated two names on the Preferred and Reserve Lists for appointment as Chief Judge of the State, and the NJC had decided who should be the Chief Judge based on the recommendation.

5.6.3 The Chairman noted that the State Government had however, rejected the candidate recommended by the Council.

5.6.4 A Member observed that the basis for the refusal of the State House of Assembly to confirm Hon. Justice Ikpeme were that

her father was from Akwa Ibom State (even though her mother was from Cross River State) as well as citing security concerns. He pointed out that Hon. Justice Ikpeme had worked there for several years and was married to an indigene of Cross River State. He therefore, suggested that Council should stand by its decision in the absence of adverse report against His Lordship.

5.6.5 Another Member, observed that Council did not initiate the process, the State did. He noted that the reasons given by the State House of Assembly for not confirming His Lordship were baseless and found no place in law to accommodate their submission. He therefore submitted that the State House of Assembly should confirm the recommended candidate as the substantive Chief Judge.

5.6.6 A Member recalled that Council had a similar problem with Kebbi State and noted that it was a constitutional issue. He stated that Council had its powers under the Constitution, just like the Governor and the State House of Assembly. He stated further that Council recommended a candidate to the Governor, who forwarded same to the House of Assembly which had rejected the candidate. He wondered whether it was proper for Council to join issues with the State House of Assembly. He clarified that, constitutionally, if a person had been rejected, the Governor could appoint the next most senior

Judge to act for three months. He was therefore, of the view that the House was not obliged to give reasons as to why it rejected a candidate.

5.6.7 Another Member stated that if the reason given for rejecting Hon. Justice Ikpeme was that she was not fit for the office, it could be understood, not because she was not from the State.

5.6.8 In the opinion of a Member, Council could not ask the House of Assembly questions as to why they rejected the recommended candidate.

5.6.9 A Member expressed the view that State House of Assembly should give reasons for its action as a mark of respect for the Council's Constitutional authority.

5.6.10 Another Member, while agreeing with the previous Speaker, stated that Council should have something in its records as the reasons for rejecting the candidate, as it did in the cases of appointment of Adamawa, Abia, Kano and Kebbi States Chief Judges.

5.6.11 The Chairman stated that all the Council needed from the State Government was clarification as to why the candidate was rejected and therefore suggested that Council should write the Governor.

5.6.12 A Member posited that the Constitution did not allow any citizen to be deprived of an appointment on grounds of his place of birth and noted that the appointment was based on a memorandum from the State and that Council should insist on its recommendation.

5.6.13 The Chairman sought to know from the Secretariat whether there was any letter from the State Governor on the matter.

5.6.14 The Secretary confirmed the receipt of letters from the Hon. Attorney-General and Commissioner for Justice of the State as well as from the Clerk of the State House of Assembly conveying the rejection of the confirmation of Hon. Justice Ikpeme as the Chief Judge of Cross River State.

5.6.15 A Member observed that the woman had been a Judge of Cross River State for years and whatever qualified her to be a Judge of the State, also qualified her to be a Chief Judge, unless there were allegations against her which Council was not aware of.

5.6.16 Another Member observed that as part of the process for appointment of Judges, security report was normally obtained from the Department of State Security Service (DSS) and in the instant case, the Reports had cleared both candidates. He noted that no contrary Security Report was received from DSS to reverse it. Therefore, it was not the place of the House of

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Assembly to override the Report of DSS without presenting facts.

5.6.17 The Chairman suggested that a strongly worded letter should be written accompanied with a delegation of Council to the Governor of Cross River State.

5.6.18 Another Member was of the view that Council should not send a delegation to the Governor, instead it should send a letter with strong reasons to him.

5.6.19 A Member opined that Council should write to the Governor stating clearly its position, and if there was the need to see the Governor, the NBA could do that. He stated that the NJC should stay out of it, as it should not be seen as lobbying the Governor to perform his duty.

5.6.20 Another Member suggested that if the State Government requested the extension of the appointment of the new Acting Chief Judge, then, Council should insist on its decision.

5.6.21 At the end of deliberation, Council agreed that a letter should be written to the Governor of Cross River State, drawing his attention to the Report by DSS clearing His Lordship of any Security issues before it recommended her appointment, and therefore mandated the Chairman to convey same to the Governor of Cross River State.

5.6.22 The NBA President was directed to Draft the reply to the Governor of Cross River State.

5.7 **Grand Kadi, Zamfara State:**

5.7.1 The Secretary confirmed that action had been taken by the Chairman as mandated by the Council.

5.7.2 Members took note.

5.8 **President, Customary Court of Appeal, Ogun State:**

5.8.1 The Secretary reported that the Chairman had taken action as mandated by the Council.

5.8.2 Members took note.

5.9 **President, Customary Court of Appeal, Osun State:**

5.9.1 The Secretary confirmed that the Chairman had taken action as mandated by the Council.

5.9.2 Members took note.

5.10 **Four High Court Judges, Rivers State:**

5.10.1 The Secretary reported that action had been taken by the Chairman as mandated by the Council. He stated further that the State Governor rejected one of the recommended candidates, Stephens Diralakeibama Jumbo, on the grounds that he was a politically exposed person, once the Vice

Chairman of Akuku Toru Local Government Area and a traditional ruler in Kula Kingdom.

5.10.2 Members took note.

5.11 **Two High Court Judges, Ogun State:**

5.11.1 The Secretary confirmed that the Chairman had taken action as mandated by the Council.

5.11.2 Members took note.

5.12 **Seven High Court Judges, Imo State:**

5.12.1 Council was informed by the Secretary that the Chairman had taken action as mandated by the Council.

5.12.2 Members took note.

5.13 **Three High Court Judges, Sokoto State:**

5.13.1 The Secretary reported that the Chairman had taken action as mandated by the Council.

5.13.2 Members took note.

5.14 **One High Court Judge, Ekiti State:**

5.14.1 Council was informed by the Secretary that the Chairman had taken action as mandated.

5.14.2 Members took note.

5.15 **Three High Court Judges, Niger State:**

5.15.1 The Secretary confirmed that action had been taken by the Chairman as mandated by the Council.

5.15.2 Members took note.

5.16 **One Kadi, Sharia Court of Appeal, Kebbi State:**

5.16.1 Council was informed by the Secretary that the Chairman had taken action as mandated.

5.16.2 Members took note.

5.17 **One Judge, Customary Court of Appeal, Rivers State:**

5.17.1 The Secretary reported that the Chairman had taken action as mandated by the Council.

5.17.2 Members took note.

5.18 **Three Judges, Customary Court of Appeal, Ogun State:**

5.18.1 Council was informed by the Secretary that the Chairman had taken action as mandated.

5.18.2 Members took note.

5.19 **Two Judges, Customary Court of Appeal, Imo State:**

5.19.1 The Secretary confirmed that action had been taken by the Chairman as mandated by the Council.

5.19.2 Members took note.

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5.20 **Memorandum by the Chief Justice of Nigeria**:

5.20.1 The Secretary reported that action had been taken by the Secretariat as directed by the Council. He stated further that the Health Insurance Provider had started contacting the beneficiaries and issuing their registration numbers.

5.20.2 A Member informed Council that he had not been contacted by the Health Insurance Provider.

5.20.3 The Secretary took note and assured the Member that he would be contacted.

5.20.4 A Member drew Council's attention to those of them who had retired and already had their hospitals and Doctors. He stated that to sign up with a new health insurance company, would mean starting all over again and submitted that if there was an exemption, he would like to be exempted from the scheme.

5.20.5 The Chairman observed that it was a matter of choice and noted that the Health Insurance Provider should liaise with the beneficiaries to know their current medical Consultants and agree on their preferences.

5.20.6 A Member suggested that the Secretariat should liaise with the Health Insurance Provider with a view to accommodating the Member's peculiar case.

5.21 **Action on Notifications of Retirements:**

5.21.1 Council was informed by the Secretary that action had been taken by the Chairman as mandated.

5.21.2 Members took note.

5.22 **Action on Notifications of Deaths:**

5.22.1 The Secretary reported that the Secretariat had taken action by writing letters of condolence to the families of late Hon. Justice Tine Tur of the Court of Appeal and Hon. Justice Moses B. Wakili of the Customary Court of Appeal, Kaduna State, as directed by the Council.

5.22.2 Members took note.

5.23 **Letter from Hon. Justice F. A. Ojo, Court of Appeal:**

5.23.1 The Secretary reported that action had been taken by the Secretariat as directed by the Council.

5.23.2 Members took note.

5.24 **Letter from Hon. Justice V. A. O. Omage, OFR:**

5.24.1 The Secretary reported that the Secretariat had taken action by writing to Hon. Justice V. A. O. Omage, OFR, appreciating his remarkable contributions to Council during the period of his Membership.

5.24.2 Members took note.

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6.0 APPOINTMENTS

6.1 Reports from the Interview Committee on Appointment of Judicial Officers:

6.1.1 The Chairman of the Interview Committee, Hon. Justice Bode Rhodes-Vivour, CFR, presented the two Reports of the Committee and informed Council that the various interviews were conducted on 11th, 12th, 18th, 19th, 25th and 26th February, 2020 as well as 10th and 11th March, 2020, respectively.

6.1.2 Efosa O. Etomi, Esq. moved for the adoption of the Reports and was seconded by Hon. Justice A. I. Iyayi-Lamikanra.

6.2 President, Court of Appeal:

6.2.1 Hon. Justice M.B. Dongban-Mensem, the Acting President, Court of Appeal excused herself from the Meeting.

6.2.2 Hon. Justice Bode Rhodes-Vivour, CFR, informed Council that the two candidates shortlisted by the Federal Judicial Service Commission on the Preferred and Reserve Lists were interviewed as follows:-

Preferred List

i) Hon. Justice M. B. Dongban-Mensem

Reserve List

ii) Hon. Justice Muhammad Lawal Garba

6.2.3 At the end of the exercise, the two candidates were found suitable for appointment as President, Court of Appeal. The Committee, therefore, recommended the appointment of the candidate on the Preferred List and presented same for Council's consideration.

6.2.4 The Chairman requested for comments.

6.2.5 Dr. Muiz Banire, SAN moved for the acceptance of the recommendation of Hon. Justice M. B. Dongban-Mensem for appointment as President, Court of Appeal and was seconded by Hon. Justice I.U. Bello.

6.2.6 Members unanimously accepted the recommendation and mandated the Chairman to convey same to the President of the Federal Republic of Nigeria subject to the confirmation of the appointment by the Senate.

6.2.7 The Acting President, Court of Appeal rejoined the Meeting.

6.3 **Thirty-Three High Court Judges, FCT, Abuja:**

6.3.1 Hon. Justice B. B. Kanyip and Mr. D. D. Dodo, OFR, SAN excused themselves from the Meeting.

6.3.2 The Chairman of the Interview Committee reported that the Sixty-Six (66) candidates shortlisted by the Judicial Service Committee of the FCT, on the Preferred and Reserve Lists were interviewed as follows:-

Preferred List

i) Muhammad Mustapha Adamu;

ii) Madugu Mohammed Alhaji;

iii) Obanor Josephine Enobie;

iv) Agunloye Kayode;

v) Enenche Eleojo;

vi) Nwabulu Ngozika Chineze;

vii) Abubakar Babashani;

viii) Aminu Mohammad Abdullahi;

ix) Nwecheonwu Chinyere Elewe;

x) Ibrahim Mohammed;

xi) Sadia Mu'azu Mayana;

xii) Mimi Anne Katsina Alu-Apena;

xiii) Kanyip Rosemary Indinya;

xiv) Aliyu Yunusa Shafa;

xv) Mohammed Zubairu;

xvi) Binta Dogonyaro;

xvii) Christopher Opeyemi Oba;

xviii) Jadesola Oludare Adeyemi-Ajayi;

xix) Abubakar Husseini Musa;

xx) Oluyemisi I. Adelaja;

xxi) Mohammed Sani Idris;

xxii) Messiri Frances Erhuvwu;

xxiii) Fatima Abubakar Aliyu;

xxiv) Jude Ogor Onwuegbuzie;

xxv) Hamza Mu'azu;

xxvi) Edward Ajenu E. Okpe;

xxvii) Agashieze Cyprian Odinaka;

xxviii) Fashola Akeem Adebowale;

xxix) Aliyu Halilu Ahmed;

xxx) Hassan Maryam Aliyu;

xxxi) Hafsat Lawan Abba-Aliyu;

xxxii) Olufolake Olufolashade Oshin; and

xxxiii) Njideka K. Nwosu-Iheme.

Reserve List

i) Sharon Tanko Ishaya;

ii) Ojoawo Afolake Theresa;

iii) Paul Audu;

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iv) Kolade-Obanijesu Elaemi;

v) Ojima Glory Etuh;

vi) Okeke Osita Mathew;

vii) Ahmad Bukar Abul-Fathi;

viii) Ado Muktar Ahmed;

ix) Musa Muhammad Abdulkadir;

x) Shafiu Shehu Auta;

xi) Hadiza Abubakar Musa;

xii) Gidado Rabi;

xiii) Abubakar Ahmed Tijjani;

xiv) Asembo Fortune Amina Iminabo;

xv) Samira Aliyu;

xvi) Auwalu Dan'Azumi;

xvii) Oyinkansola O. Oluboyede;

xviii) Akinmade Idowu;

xix) Dewa Fatima Umar;

xx) Razaq Olakunle Yusuff;

xxi) Nafisah Yusuf Hassan;

xxii) Useita O. Christiana;

xxiii) Katty A. Yille;

xxiv) Kenneth Uwadinjo Osemeha;

xxv) Abdullahi Abubakar;

xxvi) Goja Wilfred Augustine;

xxvii) Ofodili Uchenna Anthony;

xxviii) Mathias Oluwole Dawodu;

xxix) Aishatu Mohammed Umar;

xxx) Maitumbi Davihrum Altine;

xxxi) Usman Lukman Nuhu;

xxxii) Joseph Adebayo Aina; and

xxxiii) Melford Owunari Georgewill.

6.3.3 At the end of the interview, the Committee found all the candidates on the Preferred and Reserve Lists suitable for appointment as Judges of the High Court of the FCT. It, therefore, recommended the appointment of all the candidates on the Preferred List and presented them for Council's consideration.

6.3.4 The Chairman called for comments.

6.3.5 Hon. Justice O.A. Ojo moved for the acceptance of the recommendation of the 33 candidates on the Preferred List for

appointment as Judges of the High Court of the FCT and was seconded by Dr. Muiz Banire, SAN.

6.3.6 A Member of the Interview Committee informed Council that the Committee noted that the Chief Judge of the FCT did well as all the candidates recommended were very good.

6.3.7 Thereafter, the Chairman informed the Chief Judge of FCT of the decision of the Council and also commended him for a job well done.

6.3.8 Members unanimously accepted the recommendation and mandated the Chairman to convey same to Mr. President.

6.3.9 Hon. Justice B. B. Kanyip and Mr. D. D. Dodo, OFR, SAN rejoined the Meeting.

6.4 **Grand Kadi, Sharia Court of Appeal, Jigawa State:**

6.4.1 Hon. Justice Bode Rhodes-Vivour, CFR, reported that the two candidates nominated by the Jigawa State Judicial Service Commission on both the Preferred and Reserve Lists were interviewed as follows:-

Preferred List

i) Hon. Kadi Muhammad Sani Salihu

Reserve List

i) Hon. Kadi Umar Nasir Ahmad

6.4.2 At the end of the interview, both candidates were found suitable for appointment as Grand Kadi of the Sharia Court of Appeal, Jigawa State. The Committee thus recommended the appointment of the candidate on the Preferred List and presented him for Council's consideration.

6.4.3 The Chairman requested for comments.

6.4.4 Hon. Justice A. I. Iyayi-Lamikanra moved for the acceptance of the recommendation of Hon. Kadi Muhammad Sani Salihu for appointment as Grand Kadi, Sharia Court of Appeal, Jigawa State and was seconded by Hon. Justice A. M. A. Saddeeq.

6.4.5 Council unanimously accepted the recommendation and mandated the Chairman to convey same to the Governor of Jigawa State.

6.5 **Grand Kadi, Sharia Court of Appeal, Sokoto State:**

6.5.1 Hon. Justice Bode Rhodes-Vivour, CFR, informed Council that the two candidates shortlisted by the Sokoto State Judicial Service Commission on both the Preferred and Reserve Lists were interviewed as follows:-

Preferred List

i) Hon. Kadi Tambari Usman

Reserve List

i) Hon. Kadi Shu'aibu Sodangi Achida

6.5.2 At the end of the exercise, both candidates were found suitable for appointment as Grand Kadi of the Sharia Court of Appeal, Sokoto State. The Committee therefore, recommended the appointment of the candidate on the Preferred List and presented him for Council's consideration.

6.5.3 The Chairman requested for comments.

6.5.4 Mr. D.D. Dodo, OFR, SAN moved for the acceptance of the recommendation of Hon. Kadi Tambari Usman for appointment as Grand Kadi, Sharia Court of Appeal, Sokoto State and was seconded by Mrs R. I. Inga.

6.5.5 Council unanimously accepted the recommendation and mandated the Chairman to convey same to the Governor of Sokoto State.

6.6 **President, Customary Court of Appeal, Oyo State:**

6.6.1 Hon. Justice Bode Rhodes-Vivour, CFR, reported that the two candidates nominated by the Oyo State Judicial Service Commission on the Preferred and Reserve Lists were interviewed as follows:-

Preferred List

i) Hon. Justice Aderonke Adekemi Aderemi

Reserve List

i) Hon. Justice M. A. A. Abass

6.6.2 At the end of the interview, the Committee found the candidates on the Preferred and Reserve Lists suitable for appointment as President of the Customary Court of Appeal, Oyo State. The Committee thus, recommended the appointment of the candidate on the Preferred List for consideration of the Council.

6.6.3 The Chairman requested for comments.

6.6.4 Hon. Justice O.A. Ojo moved for the acceptance of the recommendation of Hon. Justice Aderonke Adekemi Aderemi for appointment as President, Customary Court of Appeal, Oyo State and was seconded by Hon. Grand Kadi Mohammed Danjuma.

6.6.5 Council unanimously accepted the recommendation and mandated the Chairman to convey same to the Governor of Oyo State.

6.7 **Eight High Court Judges, Lagos State:**

6.7.1 Council was informed by Hon. Justice Bode Rhodes-Vivour, CFR, that the sixteen (16) candidates nominated by the Lagos State Judicial Service Commission on the Preferred and Reserve Lists were interviewed as follows:-

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Preferred List

i) Olatokun Dorcas Taiwo;

ii) Oshoala Yhaqub Gbadebo;

iii) Olukolu Rasul;

iv) Oguntade Omotola Ibironke;

v) Olaitan Sharafa Abioye;

vi) Pokanu Adeniyi;

vii) Ashade Ezekiel Oluwole; and

viii) Sule-Amzat Olufunke.

Reserve List

i) Alebiosu Olawale Lawal;

ii) Aigbkhaevbo Florence;

iii) Aigoro Saheed Adegbenga;

iv) Ijelu Ismail Olalekan;

v) Adedeko Olalekan Soji;

vi) Martins Olumuyiwa Oluseun;

vii) Oshodi Rahman Adeshola; and

viii) Davies Rasaq Olujimi.

6.7.2 At the end of the interview, all the candidates were found suitable for appointment as Judges of the Lagos State High Court. Consequently, the Committee recommended the appointment of all the candidates on the Preferred List and presented them for Council's consideration.

6.7.3 The Chairman called for comments.

6.7.4 Dr. Muiz Banire, SAN moved for the acceptance of the recommendation of Olatokun Dorcas Taiwo, Oshoala Yhaqub Gbadebo, Olukolu Rasul, Oguntade Omotola Ibironke, Olaitan Sharafa Abioye, Pokanu Adeniyi, Ashade Ezekiel Oluwole and Sule-Amzat Olufunke, for appointment as Judges of Lagos State High Court and was seconded by Hon. Justice A. M. A. Saddeeq.

6.7.5 A Member of the Interview Committee informed Council that all the candidates presented by the Lagos State JSC on the Preferred and Reserve Lists were very good and was of the view that the State JSC should be advised to give preference to all the candidates on the Reserve List in their next appointment exercise.

6.7.6 Thereafter, Council accepted the recommendation and mandated the Chairman to convey same to the Governor of Lagos State.

6.8 **Five High Court Judges, Delta State:**

6.8.1 The Chairman of the Interview Committee informed Council that the ten (10) candidates shortlisted by the Delta State Judicial Service Commission on both the Preferred and Reserve Lists were interviewed as follows:-

Preferred List

i) Aaron Ighoverio;

ii) Emmanuel Zimi Dolor;

iii) Onome Marshal Umukoro;

iv) Agboje Veronica Oka; and

v) Enenmo Onyeawuli Ferdinard.

Reserve List

i) Jordon Omagufi Susan Igho;

ii) Unurhoro Jennifer Onome;

iii) Gbakeji emakpor Michael;

iv) Tabowei Emmanuel Chukwudi; and

v) Uche Geraldine Ofulue.

6.8.2 His Lordship informed Council that the Committee deliberated on two Petitions dated 16th and 19th September, 2019, by Messrs Omughele Lawrence and Michael A. Asugo against the appointment process of the Delta State Judicial

Service Commission, alleging that it was marred by nepotism and imbalance in geographical spread.

6.8.3 Thereafter, the Committee sought clarification from Hon. Justice Marshal Umukoro, the Chief Judge of the State. His Lordship explained that he had always been sensitive to the issue of spread and assured Members that this was the case in the instant exercise.

6.8.4 The Committee nonetheless, urged His Lordship that henceforth, all interests in the State should be represented in nominating candidates for appointment as Judges.

6.8.5 At the end of the exercise, all the candidates on the Preferred and Reserve Lists were found suitable for appointment as Judges of the Delta State High Court. Consequently, the Committee recommended the appointment of all the candidates on the Preferred List and presented them for Council's consideration.

6.8.6 The Chairman called for comments.

6.8.7 Hon. Justice A. I. Iyayi-Lamikanra moved for the acceptance of the recommendation of Aaron Ighoverio, Emmanuel Zimi Dolor, Onome Marshal Umukoro, Agboje Veronica Oka and Enenmo Onyeawuli Ferdinard, for appointment as Judges of

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the Delta State High Court and was seconded by Efosa O. Etomi, Esq.

6.8.8 Council unanimously accepted the recommendation and mandated the Chairman to convey same to the Governor of Delta State.

6.9 **Two High Court Judges, Adamawa State:**

6.9.1 Council was informed by the Chairman of the Interview Committee that the four (4) candidates presented by the Adamawa State Judicial Service Commission on the Preferred and Reserve Lists were interviewed as follows:-

Preferred List

i) Musa Usman; and

ii) Kyanson Samuel Lawson.

Reserve List

i) Ahmed Isa; and

ii) Alim Yahaya.

6.9.2 At the end of the exercise, the Committee found all the candidates on the Preferred and Reserve Lists suitable for appointment as Judges of the Adamawa State High Court. It, therefore, recommended the appointment of all the candidates on the Preferred List for Council's consideration.

6.9.3 The Chairman requested for comments.

6.9.4 Dr. Muiz Banire, SAN moved for the acceptance of the recommendation of Messrs Musa Usman and Kyanson Samuel Lawson, for appointment as Judges of the Adamawa State High Court and was seconded by Mrs R. I. Inga.

6.9.5 Members accepted the recommendation and mandated the Chairman to convey same to the Governor of Adamawa State.

6.10 **Two High Court Judges, Katsina State:**

6.10.1 Hon. Justice Bode Rhodes-Vivour, CFR informed Council that the four (4) candidates shortlisted by the Katsina State Judicial Service Commission on the Preferred and Reserve Lists were interviewed as follows:-

Preferred List

i) Muhammad Ashiru Sani; and

ii) Kabir Shu'aibu.

Reserve List

i) Safiya Umar Badamasi; and

ii) Ibrahim Isyaku Mashi.

6.10.2 At the end of the exercise, the Committee found the first candidate on the Preferred List and the first candidate on the Reserve List suitable for appointment as Judges of the Katsina

State High Court. The Committee, therefore, recommended the appointment of Muhammad Ashiru Sani and Safiya Umar Badamasi and presented them for Council's consideration.

6.10.3 The Chairman requested for comments.

6.10.4 Hon. Grand Kadi Mohammed Danjuma moved for the acceptance of the recommendation of the Interview Committee and was seconded by Hon. Justice A.I. Iyayi-Lamikanra.

6.10.5 Members accepted the recommendation and mandated the Chairman to convey same to the Governor of Katsina State.

6.11 **Two High Court Judges, Jigawa State:**

6.11.1 Hon. Justice Bode Rhodes-Vivour, CFR reported that the four (4) candidates shortlisted by the Jigawa State Judicial Service Commission on the Preferred and Reserve Lists were interviewed as follows:-

Preferred List

i) Musa Ubale; and

ii) Hussaina Adamu Aliyu.

Reserve List

i) Hauwa Zakar Hadejia; and

ii) Bashir Usaini.

6.11.2 At the end of the interview, the Committee found all the candidates on the Preferred and Reserve Lists suitable for appointment as Judges of the Jigawa State High Court. Consequently, the Committee recommended the appointment of the candidates on the Preferred List and presented them for Council's consideration.

6.11.3 The Chairman called for comments.

6.11.4 Hon. Justice O.A. Ojo moved for the acceptance of the recommendation of Musa Ubale and Hussaina Adamu Aliyu for appointment as Judges of the Jigawa State High Court and was seconded by Hon. Justice I.U. Bello.

6.11.5 Council agreed with the recommendation and mandated the Chairman to convey same to the Governor of Jigawa State.

6.12 **Two High Court Judges, Abia State:**

6.12.1 The Chairman of the Interview Committee reported that the four (4) candidates shortlisted by the Abia State Judicial Service Commission on the Preferred and Reserve Lists were interviewed as follows:-

Preferred List

i) Chiemezie Chido Nwakanma; and

ii) Jules Uchenna Gbaruko.

Reserve List

i) Philomena Onyeje Nweke; and

ii) Doris Obiageri.

6.12.2 At the end of the exercise, the Committee found the first candidate on the Preferred List and the first candidate on the Reserve List suitable for appointment as Judges of the Abia State High Court. It therefore, recommended the appointment of Chiemezie Chido Nwakanma and Philomena Onyeje Nweke, as Judges of the Abia State High Court and presented them for Council's consideration.

6.12.3 The Chairman requested for comments.

6.12.4 Hon. Grand Kadi Mohammed Danjuma moved for the acceptance of the recommendation of the Committee and was seconded by Efosa O. Etomi, Esq.

6.12.5 Members agreed with the recommendation of the Committee and mandated the Chairman to convey same to the Governor of Abia State.

6.13 **Five High Court Judges, Kwara State:**

6.13.1 Council was informed by Hon. Justice Bode Rhodes-Vivour, CFR that the ten (10) candidates shortlisted by the Kwara State

Judicial Service Commission on the Preferred and Reserve Lists were interviewed as follows:-

Preferred List

i) Olanipekun Sherifat Bola;

ii) Funsho Dada Lawal;

iii) Hussein Toyin Kawu;

iv) Nureni Kuranga; and

v) Umar Zikki Jibril.

Reserve List

i) Olawoyin Ibijoke Olabisi;

ii) Adeniyi Oluwatosin Adenike;

iii) Yahaya Kudirat Ambali;

iv) Muhammed Ayoola Idowu; and

v) Haruna Danladi Mohammed.

6.13.2 The Committee however, considered two petitions dated 29th October, 2019 and 29th February, 2020, by Sambo Muritala, Esq, alleging violation of and non-compliance with the Constitutional and Statutory provisions in the process of appointment of Five High Court Judges for Kwara State.

6.13.3 The Committee noted that Hon. Justice S. D. Kawu, the Hon. Chief Judge of the State and the Chief Registrar of the High Court, who was incidentally one of the candidates interviewed, debunked the allegations. They also assured the Committee that vehicles, offices and residences for the instant appointment were in place. Therefore, the petitions were dismissed for lack of merit.

6.13.4 At the end of the exercise, the Committee found all the candidates on the Preferred and Reserve Lists suitable for appointment as Judges of the High Court of Kwara State. Consequently, it recommended the appointment of all the candidates on the Preferred List and presented them for Council's consideration.

6.13.5 The Chairman called for comments.

6.13.6 Hon. Justice A. I. Iyayi-Lamikanra moved for the acceptance of the recommendation of Olanipekun Sherifat Bola, Funsho Dada Lawal, Hussein Toyin Kawu, Nureni Kuranga and Umar Zikki Jibril, for appointment as Judges of the High Court of Kwara State and was seconded by Hon. Justice O. A. Ojo.

6.13.7 Members unanimously accepted the recommendation and mandated the Chairman to convey same to the Governor of Kwara State.

6.13.8 Thereafter, the Chairman drew Members' attention to a letter dated 4th March, 2020 by Ayinla Salman Jawondo, Esq., the Attorney-General of Kwara State requesting for the withdrawal of the Memorandum by the Kwara State Judicial Service Commission in respect of the appointment of five High Court Judges for the State. He stated further that the State Governor, Alhaji Abdulrahman Abdulrazaq in another letter dated 13th March, 2020 confirmed giving his approval for the State JSC to proceed with the exercise and requested Council to disregard the aforestated letter by the Attorney-General of the State.

6.13.9 Members took note.

6.14 **Four High Court Judges, Kaduna State:**

6.14.1 Hon. Justice Bode Rhodes-Vivour, CFR informed Council that the eight (8) candidates shortlisted by the Kaduna State Judicial Service Commission on the Preferred and Reserve Lists were interviewed as follows:-

Preferred List

i) Amina Ahmad Bello;

ii) Ambo Yakubu John;

iii) Murtala Ja'afaru Zubairu; and

iv) Pius Iliya Akawu.

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Reserve List

i) Andow Edward;

ii) Rabi Salisu Oladoja;

iii) Bashir Yusuf Shittu; and

iv) Mohammed Adamu Hamza.

6.14.2 At the end of the exercise, the Committee found the first two candidates on the Preferred List and the first two candidates on the Reserve List suitable for appointment as Judges of the Kaduna State High Court. Therefore, the Committee recommended the appointment of Amina Ahmad Bello, Ambo Yakubu John, Andow Edward and Rabi Salisu Oladoja and presented them for Council's consideration.

6.14.3 The Chairman requested for comments.

6.14.4 Dr. Muiz Banire, SAN moved for the acceptance of the recommendation of the Interview Committee and was seconded by Hon. Justice I.U. Bello.

6.14.5 Council accepted the recommendation of the Committee and mandated the Chairman to convey same to the Governor of Kaduna State.

6.15 **One Kadi, Sharia Court of Appeal, Adamawa State:**

6.15.1 Council was informed by Hon. Justice Bode Rhodes-Vivour, CFR that the two (2) candidates shortlisted by the Adamawa State Judicial Service Commission on the Preferred and Reserve Lists were interviewed as follows:-

Preferred List

i) Hashimu Suleiman Amila

Reserve List

i) Aliyu Abubakar Suleiman

6.15.2 At the end of the exercise, the Committee found the candidates on the Preferred and Reserve Lists unsuitable for appointment as Kadi because, they could neither speak Arabic nor effectively answer questions on the basic principles of succession under the Sharia Law. Therefore, the Committee did not recommend any of the candidates for appointment.

6.15.3 The Committee recommended that Council should inform the Adamawa State Judicial Service Commission to conduct another exercise to select candidates with proficiency in Arabic Language and basic knowledge of the Sharia Law.

6.15.4 The Chairman requested for comments.

6.15.5 Mrs R. I. Inga moved for the acceptance of the recommendation of the Committee and was seconded by Hon. Justice J. T. Tsoho.

6.15.6 A Member sought to know how proficiency in Arabic Language was being judged by the Committee, as the Council Chairman was no longer a Member of the Interview Committee.

6.15.7 The Secretary replied that the aspect of proficiency in Arabic Language was being handled by Hon. Justice Umaru Abdullahi, CON who happened to be a Member of the Interview Committee.

6.15.8 Hon. Justice Umaru Abdullahi, CON advocated the need to have another Member knowledgeable in Sharia Law and proficient in Arabic on the Committee.

6.15.9 Another Member suggested that Council should issue a directive to the States Judicial Service Commissions, to, in future, conduct aptitude test and interview for candidates in Arabic, to enable them come up with competent candidates at the JSC level.

6.15.10 In the opinion of a Member, the second test was necessary at the Council level and noted that presently some Grand Kadis at the State level could not even speak Arabic.

6.15.11 Another Member was of the view that written examination should not only be for prospective Kadis but also for candidates aspiring for appointment to High Court Bench in order to strengthen the process.

6.15.12 A Member opined that examination should not be a hard and fast rule for any direction by the Council and that the current practice of sifting and assessment of intellect and practical experience of candidates by Heads of Court should suffice.

6.15.13 At the end of deliberation, Council agreed to deal with the issue at a Special Meeting.

6.15.14 Council directed the Secretary to convey its decision to the Adamawa State Judicial Service Commission to conduct a fresh exercise.

6.16 **Two Kadis, Sharia Court of Appeal, Katsina State:**

6.16.1 The Chairman of the Interview Committee reported that the four (4) candidates presented by the Katsina State Judicial Service Commission were interviewed as follows:

Preferred List

i) Muhammed Adam Makiyu; and

ii) Kabir Hamisu Bello.

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Reserve List

i) Sagir Sa'idu Imam; and

ii) Adam Salihu Yarima.

6.16.2 At the end of the Interview, the Committee found the first candidate on the Preferred List and the second candidate on the Reserve List suitable for appointment. Furthermore, the Committee found Adam Salihu Yarima exceptional and thus, unanimously agreed to place him as the first candidate on the Preferred List.

6.16.3 The Committee therefore, recommended the appointment of Adam Salihu Yarima and Muhammed Adam Makiyu and presented them for Council's consideration.

6.16.4 The Chairman requested for comments.

6.16.5 Dr. Muiz Banire, SAN moved for the acceptance of the recommendation of the Committee and was seconded by Mrs R. I. Inga.

6.16.6 Council agreed with the recommendation and mandated the Chairman to convey same to the Governor of Katsina State.

6.17 **One Judge, Customary Court of Appeal, Abia State:**

6.17.1 Hon. Justice Bode Rhodes-Viviour, CFR informed Council that the two (2) candidates shortlisted by the Abia State Judicial Service Commission were interviewed as follows:

Preferred List

i) Ezekiel Elekeson Samuel

Reserve List

i) Phoebe Eva Alvan Okoronkwo

6.17.2 At the end of the exercise, the Committee found the candidate on the Reserve List suitable for appointment as a Judge of the Customary Court of Appeal, Abia State. It therefore, recommended the appointment of Phoebe Eva Alvan Okoronkwo and presented her for Council's consideration.

6.17.4 The Chairman requested for comments.

6.17.5 Dr. Muiz Banire, SAN moved for the acceptance of the recommendation of the Committee and was seconded by Hon. Justice J. T. Tsoho.

6.17.6 Council agreed with the recommendation and mandated the Chairman to convey same to the Governor of Abia State.

6.17.7 The Secretary informed Members that some Heads of Courts were waiting to be admitted into the meeting to be informed of

Council's decision on the Memoranda from their various States.

6.17.8 Council directed the Secretary to communicate the decisions of the Council to all concerned Heads of Courts.

7.0. APPOINTMENT OF CHIEF JUDGE OF CROSS RIVER STATE

7.1 The Secretary informed Council that it had earlier deliberated on the subject matter.

7.2 Members took note.

8.0 NOTIFICATION OF APPOINTMENTS

8.1 Council noted the appointments of the following Judicial Officers:-

i) Hon. Justice Muhammad Saidu Sifawa, Hon. Chief Judge of Sokoto State, who was appointed and sworn in on 12th September, 2019.

ii) Hon. Justice E.A. Edigin, Hon. Chief Judge of Edo State, who was appointed and sworn in on 22nd November, 2019.

iii) Hon. Justice Onochie M. Anyachebelu, Hon. Chief Judge of Anambra State, who was appointed and sworn in on 18th February, 2020.

v) Hon. Justice Muhammad Suleiman Ambursa, Chief Judge of Kebbi State, who was appointed and sworn in on 16th January, 2020.

vi) Hon. Justice Maurice Odey Eneji, Acting Chief Judge, Cross River State, who was appointed and sworn in on 2nd March, 2020.

vii) Hon. Kadi, Muhammad Sani Salihu, Acting Grand Kadi, Sharia Court of Appeal, Jigawa State, who was appointed and sworn in on 20th December, 2019.

viii) Hon. Kadi Dahiru Muhammad Gusau, Hon. Grand Kadi, Zamfara State, who was appointed and sworn in on 23rd January, 2020.

ix) Hon. Kadi Muhammad Tambari Usman, Acting Grand Kadi, Sharia Court of Appeal, Sokoto State, who was appointed and sworn in on 31st December, 2019.

x) Hon. Justice Eunice Aderonke Alade, President, Customary Court of Appeal, Ondo State, who was appointed and sworn in on 30th December, 2019.

xi) Hon. Justice Mobolaji Ayodele Ojo, President, Customary Court of Appeal, Ogun State, who was appointed and sworn in on 9th January, 2020.

xii) Hon. Justice Foluke Eunice Awolalu, President, Customary Court of Appeal, Osun State, who was appointed and sworn in on 21st January, 2020.

xiii) Hon. Justices Florence Atili Fiberesima, Mark Onyema Chuku and Lemea Ngbor-Abina, High Court of Justice, Rivers State, who were appointed and sworn in on 7th January, 2020.

xiv) Hon. Justice Ericanda Amadi, Customary Court of Appeal, Rivers State, who was appointed and sworn in on 7th January, 2020.

xv) Hon. Justices M. Mohammed, Aminu Garba Sifawa and Raliya U. Mohammed, High Court of Justice, Sokoto State, who were appointed and sworn in on 31st December, 2019.

xvi) Hon. Justices Ihuoma Grace Chukwunyere, Edith Chinyere Ibeawuchi, Victoria Chinyere Isiguzo, Vincent Ifeanyichukwu Onyeka, Eze Nonye Eke, Vivian Ogechi Bon-Nwakanma Ekezie and Kechinyere Adanma Leweanya, High Court of Justice, Imo State, who were appointed and sworn in on 3rd January, 2020.

xvii) Hon. Justices Binta Bawa, Danladi Ahmad and Alhassan Salisu Majidadi, High Court of Justice, Niger State, who were appointed and sworn in on 15th January, 2020.

xviii) Hon. Justices Onyinye Samuel Anumonye and Victoria Toochukwu Nwoye, High Court of Justice, Anambra State, who were appointed and sworn in on 2nd December, 2019.

xix) Hon. Justices Olukemi O. Yetunde Oresanya and Olufunmilayo Omowunmi Stanley, High Court of Justice, Ogun State, who were appointed and sworn in on 8th January, 2020.

xx) Hon. Justice Obafemi Fasanmi, High Court of Justice, Ekiti State, who was appointed and sworn in on 8th January, 2020.

xxi) Hon. Justice Nkereuwem Martin Obot, High Court of Justice, Akwa-Ibom State, who was appointed and sworn in on 14th November, 2019.

xxii) Hon. Kadi Bello Khalid Jega, Sharia Court of Appeal, Kebbi State, who was appointed and sworn in on 16th January, 2020.

xxiii) Hon. Justices Josephine Ijeoma Obichere and Tennyson Ifeanyichukwu Nze, Customary Court of Appeal, Imo State, who were appointed and sworn in on 3rd January, 2020.

xxiv) Hon. Justice Goje Yahaya Hamman, High Court of Justice, Taraba State, who was appointed and sworn in on 20th December, 2019.

xxv) Hon. Justices Adebisi Femi-Segun, Kolawole Michael Peters and Anthony Olusesan Araba, Customary Court of Appeal, Ogun State, who were appointed and sworn in on 9th January, 2020.

xxvi) Hon. Justice Ijeoma Agugua, Acting Chief Judge, Imo State, who was appointed and sworn in on 13th March, 2020.

9.0 NOTIFICATION OF RETIREMENTS

9.1 Council noted the retirements of the following Judicial Officers:

i) Hon. Justice Paul Adamu Galumje, Supreme Court of Nigeria, who retired on 21st April, 2020, upon attaining the Constitutional retirement age of 70 years;

ii) Hon. Justice P.M. Ekpe, Court of Appeal, Calabar Division, who would retire on 2nd August, 2020, upon attaining the Constitutional retirement age of 70 years;

iii) Dr. Alhafiz Mika'ilu Abubakar, Grand Kadi, Sharia Court of Appeal, Katsina State, who would retire on 2nd June, 2020, upon attaining the Constitutional retirement age of 65 years;

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iv) Hon. Justice J.A. Kyentu, President, Customary Court of Appeal, Plateau State, who would retire on 27th June, 2020, upon attaining the Constitutional retirement age of 65 years;

v) Hon. Justice A.T. Badamasi, High Court of Justice, Kano State, who retired on 12th March, 2020, upon attaining the Constitutional retirement age of 65 years;

vi) Hon. Justice Solomon A. Olugbemi, High Court of Justice, Ogun State, who retired on 2nd April, 2020, upon attaining the Constitutional retirement age of 65 years;

vii) Hon. Justice Luka D. Aba, High Court of Justice, Kaduna State, who retired on 6th April, 2020, upon attaining the Constitutional retirement age of 65 years;

viii) Hon. Justice V.I. Ofesi, High Court of Justice, Delta State, who would retire on 24th April, 2020, upon attaining the Constitutional retirement age of 65 years;

ix) Hon. Justice V.V.M. Venda, High Court of FCT, Abuja, who retired on 2nd April, 2020, upon attaining the Constitutional retirement age of 65 years;

x) Hon. Grand Kadi Muhammad Mahmud Alkali, Sharia Court of Appeal, Adamawa State, who would retire on 6th

May, 2020, upon attaining the Constitutional retirement age of 65 years; and

xi) Hon. Justice A.I. Sagai, Customary Court of Appeal, Plateau State, who retired on 18th March, 2020, upon attaining the Constitutional retirement age of 65 years.

9.2 The Chairman was mandated to convey Council's acceptance of the Retirement Notices and wish the Judicial Officers a happy and fulfilled life in retirement.

10.0 NOTIFICATION OF DEATHS

10.1 Council took note of the Notification of Deaths given in respect of the following Judicial Officers:-

i) Hon. Justice Tom Shuaibu Yakubu, Court of Appeal, which sad event occurred on 24th December, 2019;

ii) Hon. Justice Ibrahim Maikaita Bako, High Court of Justice, Katsina State, which sad event occurred on 12th January, 2020; and

iii) Hon. Justice Gilbert Bamidele Olupitan, High Court of Justice, Ondo State, which sad event occurred on 11th December, 2019.

10.2 The Secretary was directed to write letters of condolence to the families of the deceased through their Heads of Courts.

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11.0 MISCELLANEOUS

11.1 Letter from Mr. Nyesom Ezenwo Wike, CON, Governor of Rivers State:

11.1.1 The Secretary informed Council that by a letter dated 4th January, 2020, Mr. Nyesom Ezenwo Wike, CON, declined the appointment of Stephens Diralakeibama Jumbo, Esq. as a High Court Judge because he was a politically exposed person and was once the Vice Chairman of Akuku Toru Local Government Area. The candidate was also fingered as the central figure in several chieftaincy and other conflicts in the Community.

11.1.2 The Governor stated further that investigation was ongoing to ascertain the suitability or otherwise of Mr. Stephens Dirialakeibama Jumbo Esq. for the post of a Judicial Officer in Rivers State Judiciary.

11.1.3 The Chairman requested for comments.

11.1.4 A Member suggested that since the letter stipulated that an investigation was being carried out on the matter, Council should await the outcome of the investigation.

11.1.5 The Chairman stated that while awaiting the outcome of the investigation by Rivers State Government, the matter should be deferred *ad-infinitum*.

11.1.6 A Member however opined that the matter should not be deferred *ad-infinitum,* but rather Council should wait till its next meeting and if there was no response from Rivers State Government, it could then decide the on what step to take.

11.1.7 Thereafter, Members agreed to await the outcome of the investigation by the Rivers State Government.

11.2 **Letter from Hon. Justice Olusegun Muniru Olagunju and 2 Ors., High Court, Oyo State:**

11.2.1 The Secretary informed Council that Hon. Justices O.M. Olagunju, M.A. Adegbola and A.L. Akintola by a joint letter dated 28th November, 2019, requested for Council's directive on the proper order of seniority at the Bench regarding seven (7) Hon. Judges of the Oyo State Judiciary who were sworn in at different times in the last thirteen years and which was not based on seniority at the Bar.

11.2.2 A Member explained that the three Hon. Judges were complaining about the way seniority arrangement was done in the State and insisted that they should be placed according to their dates of Call to the Bar. They listed out all the Judges that were appointed in 2006 and stated that the seniority arrangement was not proper. They further stated that four of them were sworn in on the same day, but with different years

of Call and urged Council that the Order of seniority should be rearranged to reflect their years of Call to Bar.

11.2.3 She stated further that the Chief Judge of the State contacted other Judges apart from the three that signed the letter for their opinion.

11.2.4 That Hon. Justices O.I. Aiki and R. B. Akintola in their reactions to the petition, explained that what the three Judges were complaining about was not the correct position. They clarified that at the time of their appointment in 2006, the arrangement of seniority was done according to their offices, the Chief Registrar took the oath of office first, then the Solicitor-General and lawyers, and their years of Call to Bar were not considered.

11.2.5 They stated further that it was a tradition in Oyo State Judiciary that the Chief Registrar took precedence in the order of swearing-in of appointed Judges, followed by the Deputy Chief Registrar, Solicitor-General, Director of Public Prosecutions and Legal Practitioners. Their Lordships urged Council to discountenance the request of the complainants.

11.2.6 The Chairman requested for comments.

11.2.7 A Member recalled that at the last Meeting, a similar issue was raised and buttressed it was important for the Council to be clear and definite on the issue.

11.2.8 Another Member pointed out that, taking it from the perspective of an earlier arrival in an institution, seniority should be based on cognate experience and the year of Call to Bar.

11.2.9 A Member clarified that the issue had been occurring and stated that in some States, priority was accorded to the Chief Registrar, DPP and Solicitor-General. He noted that where three people were appointed on the same day, then the date of Call to the Bar would be considered.

11.2.10 Another Member stated that the reason why seniority was now an issue was that in the 60s the only Federal Court was the Supreme Court and noted that whenever Judges were to be appointed in any Region then, the Chief Registrar took the seniority first, followed by the Permanent Secretary and then Lawyers. He therefore, suggested that going forward, for States appointment, the Chief Registrar should come first, but Federal appointments should be according to the date of Call to the Bar.

11.2.11 A Member differed from the above suggestion and urged Council not to maintain double standards, by appointing

Judges in the State based on office and that of Federal based on the date of Call to Bar.

11.2.12 At this juncture, the Chairman drew Members attention to the Extract of the Minutes of the Meeting of the Council held on 22nd and 23rd September, 2004 where Council decided on such seniority issue from one of the States and directed the then Secretary to communicate to the concerned State stating that, where two Judges were appointed on the same day, the date of Call to Bar should determine seniority and not the rank in the service.

12.2.13 A Member suggested that an Ad-Hoc Committee should be set up to look into the matter carefully.

11.2.14 Council agreed to set up a Committee comprising the following:

i)	Hon. Justice Umaru Abdullahi, CON	- Chairman
ii)	Hon. Justice F.F. Tabai, CON	- Member
iii)	Hon. Justice I.U. Bello	- "
iv)	Hon. Justice J.T. Tsoho	- "
v)	Hon. Justice Rabi T. Umar	- "
vi)	Dr. Muiz Banire, SAN	- "
vii)	Soji Oye, Esq.	- Secretary

11.2.15 Council also agreed that the Terms of Reference should not be limited to Oyo State High Court, but should be a holistic

consideration of seniority in the Judiciary. The Committee was given a time-frame of six weeks within which to complete its assignment and submit its report to Council.

11.3 **Crisis between the Judiciary Staff Union of Nigeria (JUSUN), Nasarawa State Chapter and the Chief Judge of the State:**

11.3.1 The Chairman observed that Council had earlier deliberated on the matter.

11.3.2 Members took note.

12.0 MEMBERSHIP OF THE COUNCIL

12.1 Council noted a letter dated 23rd March, 2020 by Hon. Justice M.B. Dongban-Mensem, Acting President, Court of Appeal, accepting her appointment as a Member of the Council.

13.0 ANY OTHER BUSINESS

13.1 The Chairman informed Members that in the course of the Meeting Hon. Justice Kashim Zannah, OFR, Chairman of the Judiciary Information Technology Policy Committee (JITPCO) and former Member of Council with considerable experience, would shed light on what the Judiciary could do in the face of the Covid-19 pandemic.

13.1.2 He stated further that he had already proposed a Committee to come up with urgent practical Strategic Measures to be put in

place to ensure that the Courts continue to function despite the lockdown.

13.1.3 A Member drew the Chairman's attention to the Memorandum by the Chairman of the NBA and urged Council to consider it.

13.2 **Mobile Courts and Representation by Legal Practitioners:**

13.2.1 Before Council could consider the Memorandum by the NBA, a Member expressed concern over the spate at which Mobile Courts were being established in some States including the FCT, where citizens were being tried for Coronavirus (COVID-19) related offences.

13.2.2 Another Member observed that Citizens being brought before the Mobile Courts did not have Legal Representation and was therefore of the view that Legal Services should be considered as essential.

13.3 **Memorandum by the President, Nigerian Bar Association:**

13.3.1 At this point, the Chairman requested the President of the NBA to present his Memorandum.

13.3.2 Mr. Paul Usoro, SAN stated that the NBA was concerned that since the shutdown of Courts on 24th March, 2020, there had been very little in terms of Court sitting, save, for extremely urgent and time-bound matters which according to him was to the detriment of justice and promotion of the rule of law.

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13.3.3 He stated further that it was about time to look at the possibility of introducing of technology in the justice administration at least in two immediate and critical areas, viz: Electronic filing and service of processes; and remote or virtual hearing of matters.

13.3.4 According to him, the use of technology in Justice Administration became imperative sequel to COVID-19 Pandemic, as no one could imagine if life would return to normal soon, giving the latest information released by the National Centre for Disease Control (NCDC) indicating a daily increase in diagnosed cases. He stated further that it was obvious that the Country was now experiencing community spread of the dreaded and highly contagious disease and that even if the lockdown was lifted at any time soon, the relaxation of the containment measures that have been put in place such as social distancing, wearing of face masks and avoidance of large assemblies of more than 10 persons, would not be immediate.

13.3.5 He stated that in the circumstance, the Courts might remain paralyzed and therefore was of the view that the Judiciary should examine and introduce creative methods for administration of justice, taking into account the dangers of COVID-19 Pandemic and balancing same with the ever-present need for the Courts to remain open to litigants and for the promotion and protection of the Rule of Law.

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13.2.8 He recalled that the President of Nigeria had written to the CJN to look at the possibility of speedy trials and decongestion of the Custodian Centres. He stated that certain matters which did not require the Parties or the Court sitting in a particular location, such as Originating Summons which required filing of processes and listening to the argument of Counsel as well as Motions and Bail Applications which the Judge did not have to look at the parties, could be determined and disposed of using Technology.

13.2.9 He asserted that the National Judicial Council as the apex Regulatory body for the Judiciary had been placed to lead the way in that regard.

13.2.10 Therefore, in consideration of the aforestated facts, the NBA had recommended the appointment of a reputable Technology Adviser that would prepare a technology roadmap for the Nigerian Courts. He stated that the NBA was currently working with the technology arm of PricewaterhouseCoopers (PwC) to produce such a roadmap, which they hoped to share with the Chief Justice of Nigeria.

13.2.11 He added that at present, the NBA's roadmap focus would be the Appellate Courts and the Federal High Court, expecting that the study of those Courts would serve as a pilot for other Judiciaries in the Country. He stated further that the NBA would appreciate

a directive from the Chief Justice of Nigeria and the NJC to these Courts, viz; the Supreme Court, the Court of Appeal and the Federal High Court, for the required information to be shared with the NBA by the relevant personnel of these Courts.

13.2.12 That the NBA also recommended the review of both the mandate and composition of the NJC Technology Committee and that it should work with the proposed NJC Technical Advisers. It further recommended that the Executive and Legislative Arms of Government saddled with the responsibility for appropriation and release of funds should be sensitized early on technology needs and that the budget/funds requirement of the Judiciary based on current realities of COVID-19 be presented to them. He added that the two Chairmen of the Senate and House Committees on Judiciary, being Members of the Body of Benchers, have always indicated their willingness to work with the NBA on matters relating to the administration of justice and that the NBA would be delighted to engage them.

13.2.13 He concluded by stating that Human Capital Development would be put in place for both the Judicial Officers and Court support personnel to ensure the project was not sabotaged by a lack of skill and knowledge on the part of the Judicial Officers and Court Personnel. He finally stated that whatever processes would be introduced must have absolute integrity to give confidence to all parties.

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13.2.14 He, therefore, urged the Council to decide if it was worthwhile and necessary to pursue the course and to also look at the membership of the Committee to start the process. He confirmed that the NBA had started the process with the PricewaterhouseCoopers but would like to have the affirmation of Council and that of the Chief Justice of Nigeria to enable the NBA relate with the Supreme Court, Court of Appeal and the Federal High Court and assured Council that the NBA would not require any proprietary information.

13.2.15 Thereafter, the Chairman thanked the NBA President for the Memorandum and adjudged it as an educative paper that would go a long way in giving light into the affairs of the Judiciary. He assured the NBA President that Council would not hesitate to contact him or any other member of the Bar, if it needed more light to be shed on the issues.

13.2.16 A Member stated that the paper was clear and well presented and that the objectives had been set out. He however, agreed that there were lot of challenges, but urged everyone to be ready to face the challenges and see how far the Judiciary could go.

13.2.17 The Member reminded Council that the Judiciary had Hon. Justice Kashim Zannah, OFR as its Technical Adviser, who had been working on the automation of its activities and suggested

that he should be allowed to have a look at the submission and probably meet with the NBA to see how they could work together.

13.2.18 Mr. A. B. Mahmoud, SAN, in his contribution, stated that the NBA's presentation was very clear, but emphasized the urgency of the matter. He stated that Covid-19 had created a situation in virtually every sector of the economy and noted that all other Sectors were already adjusting and making progress and advised that the Judiciary needed to move quickly and in his opinion, the Courts should open within the next two weeks.

13.2.19 He stated further that the Judiciary did not have the luxury of a long process to approach the issue. He requested that Hon. Justice Kashim Zannah should apprise the Council of the available infrastructure. He also expressed the need to look at the Rules of Court and gave the instance of Singaporean Parliament which had passed a Law called **"Covid-19 (Temporary Measures) Act 2020"**, on the use of Technology in the Court and remote Court sitting.

13.2.20 He pointed out that if temporary legislation would be needed on the Rules of Court, it should be initiated and presented to the National Assembly and suggested that another Committee could also be set up in that regard.

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13.2.21 A Member was of the view that apart from the suggestions by the previous Speaker, there would also be an urgent need to amend the Constitution for some of these things to be passed. He noted that the Constitution was very clear and that before one could have a criminal trial, the party must appear in Court in person. One could therefore, not adopt certain measures in criminal trial without the amendment of the Constitution, otherwise, every decision taken at the Trial Court level would be thrown out by the Court of Appeal.

13.2.22 Still on the subject matter, another Member stated that remote hearing of proceedings were not new and noted that Kenya Court of Appeal had been issuing Judgment remotely and that the Commercial Court of Ghana had been doing the same. He observed that Covid-19 had only exposed the weakness of Nigeria and its poor quality of infrastructure and had shown how ill-prepared Nigerians were in dealing with these issues.

13.2.23 At this juncture, Hon. Justice Kashim Zannah, OFR was admitted into the Meeting.

13.2.24 Hon. Justice Kashim Zannah, OFR confirmed that in Borno State, any lawyer that wanted a criminal case to go on, would have to obtain the consent of his client and based on that consent, the matter would be taken online. They have also resolved that where a witness existed, to avoid certain

underhand, the witness would report to the Court alone and related with his lawyer as the case proceeded remotely. He informed Council that the NJC already had a subscription with Teams, another alternative to Zoom. He stated that the Judicial Information Technology Policy Committee of the Council had been working in collaboration with its Technical Partners, the National Centre for State Courts and Centre for Legal and Court Technology. According to him, the Supreme Court and Court of Appeal had the latest Technology to hear matters remotely.

13.2.25 The Chairman requested Members to end discussion on the subject and went ahead to constitute a Committee comprising of the following:-

1. Hon. Justice Bode Rhodes-Vivour, CFR - Chairman
2. Hon. Justice M.B. Dongban-Mensem - Member
3. Hon. Justice Kashim Zannah, OFR - "
4. Hon. Justice I.U. Bello - "
5. Hon. Justice J.T. Tsoho - "
6. Hon. Justice B.B. Kanyip - "
7. Hon. Justice O.A. Ojo - "
8. Mr. Paul Usoro, SAN - "
9. Mr. A. B. Mahmoud, OON, SAN - "

10. Mr. D. D. Dodo, OFR, SAN - "

11. Hadiza S. Sa'eed, Esq. - Secretary

13.2.26 The Terms of Reference of the Committee as stipulated by the Chairman were as follows:-

i) To come up with urgent practical Strategic Measures to be put in place in order to ensure Courts continue to function despite the lockdown and Covid-19 challenges;

ii) To come up with Guidelines or Template for implementation;

iii) To explore possible areas of collaboration between the Judiciary and the Office of the Attorney-General of the Federation, Stakeholders in Justice Administration and Development Partners in Justice Administration Sector; and

iv) Any other measures that the Committee may deem fit in realizing these objectives.

13.2.27 The Committee was mandated to submit its report within 14 days.

13.2.28 A Member was of the view that Council might not meet very soon and wondered what would happen to the Report and

thus, suggested that the Chairman should act on the Report when submitted.

13.3 **Appreciation by the Chief Judge of the FCT:**

13.1 Hon. Justice I. U. Bello, on behalf of all the Chief Judges of the States for which Memoranda for appointments of Judges had been considered, thanked the Council for the recommendations made.

14.0 MOTION FOR ADJOURNMENT

14.1 Dr. M.A. Banire, SAN moved the Motion for Adjournment and was seconded by Efosa O. Etomi, Esq.

15.0 CLOSING PRAYER

15.1 Hon. Justice M. B. Dongban-Mensem led the Closing Prayer at 4.40 pm and Members rose for the National Anthem.

16.0 DATE OF NEXT MEETING

16.1 The date for the next Meeting would be communicated.

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CHAIRMAN **SECRETARY**